The Metropolitan Tribunal
Archdiocese of Boston

ORDINARY
Process

66 BROOKS DRIVE, BRAINTREE, MA 02184-3839
bostoncatholic.org/tribunal
tribunal@rcab.org

BostonCatholic.org
Archdiocese of Boston

PETITION FOR A DECLARATION OF NULLITY

FORMAL ORDINARY PROCESS

Please submit this form by mail to the **METROPOLITAN TRIBUNAL** *at the following address:*
66 Brooks Drive, Braintree, MA 02184-3839.

DOCUMENTS REQUIRED:

☐ **Baptismal Record of the PETITIONER**
with notations

☐ **Baptismal Record of the RESPONDENT**
with notations *(if it is possible)*

☐ **Two or more WITNESSES**
A witness must be someone who personally knew the parties before and at the time of their consent and can provide clear, truthful, and specific testimony about the circumstances relevant to the petition. Ideally, witnesses are individuals—such as relatives, friends, or others close to the couple—who observed their relationship during courtship and early marriage, and who can offer firsthand knowledge regarding the parties' intentions, maturity, and understanding of marriage. They must be able and willing to testify orally and in person before the Tribunal, speaking with clarity and honesty about the facts within their knowledge.

☐ **Civil Marriage Certificate**
issued by a civil authority or city hall, including the name and title of the individual who officiated the wedding

☐ **Final Divorce Decree**
(CDA in Massachusetts) The Final Divorce is typically decreed 90 days after the court date and has to be requested

☐ **Church Marriage Certificate**
In case of out of the country, it must be submitted

☐ **Documents of PREVIOUS MARRIAGES**
Civil Marriage Certificate, Final Divorce Decree (CDA), and any other document, if applicable

and ALL OTHER NECESSARY DOCUMENTS
which can be used as evidence to the present case

PETITIONER *(you)*	**RESPONDENT** *(your former spouse)* REQUIRED INFO
FULL NAME	FULL NAME
MAIDEN NAME	MAIDEN NAME
☐ MALE ☐ FEMALE	☐ MALE ☐ FEMALE
FULL HOME ADDRESS	FULL HOME ADDRESS
FULL MAILING ADDRESS	FULL MAILING ADDRESS
WORK NUMBER	WORK NUMBER
PHONE NUMBER	PHONE NUMBER
CELLPHONE	CELLPHONE

PETITIONER *(you)*	RESPONDENT *(your former spouse)* REQUIRED INFO
PLACE OF BIRTH – city/state/country	PLACE OF BIRTH – city/state/country
BIRTH DATE – month/day/year	BIRTH DATE – month/day/year
CATHOLIC DIOCESE in which your home address is located	CATHOLIC DIOCESE in which this home address is located
EMAIL	EMAIL
DATE OF BAPTISM – month/day/year	DATE OF BAPTISM – month/day/year
CHURCH OF BAPTISM and address	CHURCH OF BAPTISM and address (only for Catholics)
RELIGION at the time of this marriage	RELIGION at the time of this marriage
DATE and PLACE of reception into the Catholic Church (if applicable)	DATE and PLACE of reception into the Catholic Church (if applicable)

Are you enrolled in the Order of Christian Initiation of Adults currently?

☐ YES ☐ NO

Is he/she enrolled in the Order of Christian Initiation of Adults currently?

☐ YES ☐ NO

IS THE RESPONDENT STILL LIVING? ☐ YES ☐ NO

ABOUT THE MARRIAGE (to be declared null)

When did you begin dating? Length?	If there was a formal engagement, when did it occur?
Did you have any premarital counseling / marriage preparation?	Wedding Date:

Name of the Church and complete address:

City, State, Country:	Wedding presided by (full name):

Who presided at the wedding?

☐ A Roman Catholic BISHOP / PRIEST / DEACON
☐ Other Religious Official
☐ Judge, Justice of the Peace
☐ Another person: _____

Check all that apply:

☐ The Marriage happened in the Archdiocese of Boston
☐ The PETITIONER currently lives in the Archdiocese of Boston
☐ The RESPONDENT currently lives in the Archdiocese of Boston
☐ Most of the WITNESSES (essential to prove this case) reside in the Archdiocese of Boston

If the wedding took place apart from a Catholic ceremony without the permission of the Catholic Church, was it later celebrated (convalidated) by the Catholic Church?

☐ YES ☐ NO

If yes, provide details (church name, place and date):

How long did the couple live together before the church marriage?	How long did the couple live together after the church marriage?
When did the final separation happen?	When was the final civil divorce/dissolution?
Who filed for the civil divorce? ☐ PETITIONER ☐ RESPONDENT ☐ JOINT PETITION	Court & Place of Divorce (city, state and country):
How many children were born of this union?	Are there other children?

PETITIONER *(you)*

Was this your first marriage?

☐ YES ☐ NO

If NO, please provide more detail:

Age of the Petitioner at the time of marriage:

RESPONDENT *(your former spouse)* REQUIRED

Was this his/her first marriage?

☐ YES ☐ NO

If NO, please provide more detail:

Age of the Respondent at the time of marriage:

Has this case EVER been presented to another Tribunal?

☐ YES ☐ NO

If YES, please provide details (which Tribunal, Date, what happened)

INTENTIONAL PARTY – PETITIONER'S FUTURE MARRIAGE PLANS

Are you planning to get married in the Church? ☐ YES ☐ NO	Name of the person (INTENTIONAL PARTY):	
Was he/she ever baptized? ☐ YES ☐ NO	Which Church/Religion?	
Is he/she currently part of the OCIA program? ☐ YES ☐ NO	His/her Date of Birth:	Any children born from this relationship? ☐ YES ☐ NO
Has this person ever been previously married? ☐ YES ☐ NO	If so, is his/her former spouse still living? ☐ YES ☐ NO	Is he/she free to marry? **[QUESTION FOR SPONSOR]** ☐ YES ☐ NO
Have you contracted marriage in any form with this person? ☐ YES ☐ NO	If YES, when did you get married (place, month, year)?	

WHEN THERE IS NO INFORMATION ABOUT THE RESPONDENT

If you have no current contact information for the Respondent (such as address, phone number, or email), please indicate this clearly in your petition. The Tribunal is required by Canon Law to make a formal attempt to contact the Respondent (cf. cann. 1508 §1; 1677 §1). You should provide **ANY AVAILABLE DETAILS** that may assist in locating him or her, such as:

The last known residential address and/or city of residence:
The former or current place of employment:
The address or contact information of the Respondent's parents, siblings, or close relatives, place of employment:
The names or contacts of longtime friends or acquaintances:
The name and location of any prison or correctional facility, if applicable:
The parish, community, or organization where the Respondent may still be known:
Any social media profiles or online contact information.

Providing as much detail as possible will assist the Tribunal in fulfilling its obligation to notify the Respondent in accordance with canonical norms. The citation and right of participation of the Respondent are fundamental requirements of every judicial process (cf. cann. 1592 §1; 1620, n. 7; 1677 §1–§2; *Mitis Iudex Dominus Iesus*, art. 7 §1; *Dignitas Connubii*, art. 126–130).

The Tribunal, by force of law, **CANNOT PROCEED WITHOUT MAKING PROPER NOTIFICATION** to the Respondent. For any special circumstances, please consult the Metropolitan Tribunal before submitting the case.

STATEMENT OF THE PETITIONER REGARDING THE WHEREABOUTS OF THE RESPONDENT

I, the undersigned PETITIONER, hereby **DECLARE** that after a careful and thorough investigation, I have been unable to obtain any current contact information or reliable address for the RESPONDENT in this case. I **AFFIRM** that I have made all reasonable efforts to locate my former spouse; including inquiries with relatives, friends, and other possible sources of information, but without success. I further **STATE** that I am **NOT OPPOSED** to the Metropolitan Tribunal conducting its own investigation to determine, if possible, the whereabouts of the Respondent, in order to fulfill the canonical requirements for citation and participation in this process (cf. cann. 1508 §1; 1677 §§1–2; 1592 §1; *Dignitas Connubii*, arts. 126–130; *Mitis Iudex Dominus Iesus*, art. 7 §1). I am **FULLY AWARE** that, should the Metropolitan Tribunal discover that I have not acted in truth, or that I have intentionally withheld or concealed information regarding the Respondent, this case will be automatically **ABATED** in accordance with canonical norms (cf. cann. 1530; 1550 §2, 2º; 1608; *Dignitas Connubii*, art. 41; *Mitis Iudex Dominus Iesus*, art. 3 §3).

Signature of the Petitioner

Date

WITNESSES (at least two)

WITNESS #1 (REQUIRED)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THE PETITIONER SINCE (YEAR)	I HAVE KNOWN THE FORMER SPOUSE SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

WITNESS #2 (REQUIRED)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THE PETITIONER SINCE (YEAR)	I HAVE KNOWN THE FORMER SPOUSE SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

WITNESS #3 (OPTIONAL)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THE PETITIONER SINCE (YEAR)	I HAVE KNOWN THE FORMER SPOUSE SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

WITNESS #4 (OPTIONAL)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THE PETITIONER SINCE (YEAR)	I HAVE KNOWN THE FORMER SPOUSE SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

WITNESS #5 (OPTIONAL)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THE PETITIONER SINCE (YEAR)	I HAVE KNOWN THE FORMER SPOUSE SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

WITNESS #6 (OPTIONAL)

FULL NAME

☐ MALE ☐ FEMALE

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

RELATIONSHIP TO THE PARTIES

I HAVE KNOWN THE PETITIONER SINCE (YEAR)	I HAVE KNOWN THE FORMER SPOUSE SINCE (YEAR)

I attest that this witness is reliable and fully aware of the circumstances described in this petition, and serves as a credible witness to the matters concerning our relationship and consent.

☐ YES ☐ NO

COUNSELOR / THERAPIST (OPTIONAL)

FULL NAME

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

WHEN?

List all counselors, licensed social workers, psychologists and psychiatrists you saw before, during or after the marriage.

COUNSELOR / THERAPIST (OPTIONAL)

FULL NAME

FULL MAILING ADDRESS

PHONE NUMBER

EMAIL

WHEN?

List all counselors, licensed social workers, psychologists and psychiatrists you saw before, during or after the marriage.

PART II - MARITAL HISTORY – ASSESSMENT

A declaration of nullity is not a divorce, but an ecclesiastical study of the sacramental bond to determine, with *moral certainty* (*cf. Dignitas Connubii*, art. 247), whether a valid marriage was ever established at the time of consent. Marriage comes into being through the free and mutual act of consent, when both parties knowingly say "yes" to one another (can. 1057 §2). This consent must include proper intention, awareness, and interior freedom (can. 1055 §1; can. 1095). At times, internal or external factors may impair these essential elements. For this reason, the Tribunal first identifies the possible grounds of nullity to understand the foundation of the relationship and examine the validity of the sacrament, always mindful of the words of Christ: *"What God has joined together, let no one separate"* (Mt 19:6).

When it becomes evident that the unity and permanence intended by God were never truly realized, the Church, exercising her pastoral and judicial mission (*cf. Mitis Iudex Dominus Iesus*, Preamble), may declare the marriage invalid and assist the parties in finding healing and renewed participation in the sacramental life. This process, always guided by justice and mercy, marks the beginning of the Pathway to Matrimonial Healing. The following assessment, held in strict confidentiality, helps the Tribunal understand the personal and relational circumstances of both parties. Please review each statement carefully and mark those that apply to the Petitioner (YOU) and/or the Respondent (RESP). There are no right or wrong answers—only your sincere reflection.

A. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	was not mature enough to understand what a commitment entailed;
☐	☐	was trying to get away from something unpleasant in our lives;
☐	☐	believed we were committed to the marriage because of dating for so long;
☐	☐	had serious doubts about whether this was a good decision;
☐	☐	did not realistically consider whether this was a good decision;
☐	☐	had little or no dating experience;
☐	☐	believed that because we were sexually active, marriage was inevitable;
☐	☐	ignored the significant opposition of family and/or friends;
☐	☐	had no example of a stable marriage while growing up.

B. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	already had personal or family involvement with physical abuse, sexual abuse, gambling, alcohol or drug abuse;
☐	☐	had received or needed to receive counseling for a serious psychological disorder;
☐	☐	was unable to establish stability in a job, education, lifestyle or a relationship due to personality problems;
☐	☐	had a history of violence or other antisocial behavior;
☐	☐	could not accept personal responsibility for actions committed;
☐	☐	expressed, experienced or denied difficulties with sexual orientation.

C. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	did not want to be married to the other party but went through the ceremony for some personal reason;
☐	☐	did not want to establish a marital partnership;
☐	☐	felt that other things were more important than the spouse;
☐	☐	did not intend to assume any permanent responsibilities toward the other party.

D. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	never intended to have children;
☐	☐	would not have sexual relations unless birth control was used;
☐	☐	intended to delay, limit or exclude children for some personal reason;
☐	☐	never intended to take any responsibility for the upbringing of children.

E. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	believed that sexual infidelity was acceptable for a reason;
☐	☐	believed that one could have sexual relations outside of the marriage;
☐	☐	was sexually unfaithful shortly before or shortly after the wedding;
☐	☐	believed that sexual relations outside of marriage were acceptable as long as there was no emotional attachment;
☐	☐	never intended to have an exclusive, faithful relationship.

F. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	was convinced that divorce was acceptable if the marriage would prove to be unsuccessful and unhappy.

G. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	intended to be married only if some condition or expectation would be fulfilled.
☐	☐	intended to be married only as long as there was no infidelity.

H. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	believed that because of some external pressure or some other circumstance, marriage was the only option;
☐	☐	believed that because of parental insistence to marry, marriage was the only alternative;
☐	☐	wanted to back out of the ceremony but could not do so;
☐	☐	was afraid NOT to get married, because of some external factor or pressure.

I. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	intended to marry only a person with a certain quality;
☐	☐	mistakenly believed that the other party possessed the required quality;
☐	☐	would not have married if the truth about the quality [its presence or absence] were known;
☐	☐	separated immediately and later obtained a divorce after discovering the truth about that quality.

J. At the time of our wedding, one or both of us:

YOU	RESP	
☐	☐	purposely deceived the other party about a significant fact that is important in marriage;
☐	☐	deceived the other party into marrying;
☐	☐	felt deceived into getting married;
☐	☐	would not have married if the truth were known;
☐	☐	felt unable to stay in marriage once the deception was revealed.

PETITION – LIBELLUS (clear, simple and obvious)

The reasons why I believe my marriage to the Respondent was invalid from the very beginning are:

PETITION FOR A DECLARATION OF NULLITY

By my signature below, I respectfully request that the **Metropolitan Tribunal of the Archdiocese of Boston** examine my marriage with the RESPONDENT, in order that it be declared null and void on the ground of a defect of matrimonial consent, rather than on the basis of a defect of canonical form or the existence of a diriment impediment (cf. can. 1095–1107).

DECLARATION AND UNDERSTANDING OF THE PETITIONER

- I AFFIRM that the testimony I offer in this case is truthful and corresponds faithfully to the facts as they actually occurred (cf. can. 1532; *Dignitas Connubii,* art. 163).

- I AGREE to provide, at the proper time and upon request of the Tribunal, all relevant documents, proofs, and witnesses necessary for the just adjudication of the case (cf. can. 1526 §1; *Dignitas Connubii*, art. 167).

- I UNDERSTAND that the RESPONDENT will be cited according to law and that the information provided will be made known to him/her, in conformity with the principle of legitimate defense and the right of both parties to be heard (cf. can. 1508; *Dignitas Connubii*, arts. 56–58).

FURTHER DECLARATIONS

- I CONFIRM my full understanding that the process of investigating the validity of a marriage bond is a serious judicial procedure intended to serve the truth of the sacred bond and the good of souls, and that the Metropolitan Tribunal shall not be influenced by any external pressure or expectations regarding the time required for due process (cf. *Mitis Iudex*, preamble III; *Dignitas Connubii,* art. 35).

- I AM WILLING to provide any amplification or clarification of my testimony, to cooperate with an appointed Court Expert should a psychological evaluation or other expert analysis be requested (cf. can. 1680; *Dignitas Connubii*, art. 203), and to propose additional witnesses if the Tribunal deems further evidence necessary.

- I AM AWARE of my right to be represented by an Advocate/Procurator (a certified Canon Lawyer with JCL or JCD degree), duly approved by the Tribunal, at my own expense, or to accept the assistance of one assigned by the Metropolitan Tribunal. I acknowledge that the same right is granted to the Respondent (cf. can. 1481; *Dignitas Connubii*, arts. 101–104).

STATEMENT

- I INDICATE my full understanding that neither the Tribunal nor any of its officers can guarantee an affirmative decision, nor can any assurance be given regarding the duration or outcome of the process (cf. *Mitis Iudex,* art. 14 §1).

- **I ALSO AGREE** that **no wedding may be scheduled** nor any marriage preparation undertaken until — and unless — I have received a final declaration of nullity of the marriage under examination and I have been declared canonically free to marry within the Catholic Church (cf. can. 1682 §2; *Dignitas Connubii*, art. 250).

Signature of the Petitioner

Date

Signature of the Sponsor

Date

INFORMATION ABOUT THE SPONSOR

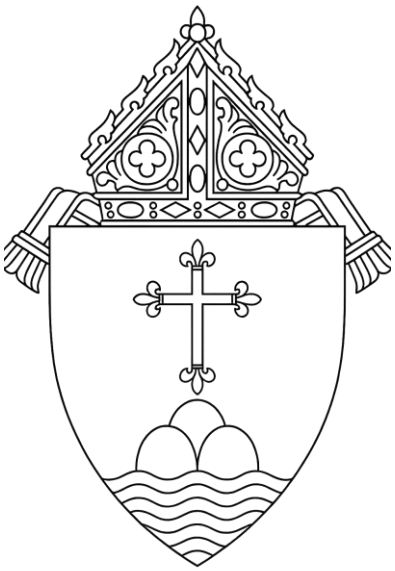
PRINTED NAME OF THE PRIEST / DEACON / PASTORAL ASSOCIATE:	

SPONSOR'S PHONE NUMBER:	SPONSOR'S EMAIL ADDRESS:

PARISH:

PARISH PHONE:	PARISH EMAIL:

FOR MANY WHO TURN TO THE TRIBUNAL WITH A MARRIAGE CASE, THIS JOURNEY BECOMES ONE OF PERSONAL GROWTH AND SPIRITUAL HEALING. IN ALL THAT THE CATHOLIC CHURCH UNDERTAKES, WE REMAIN ROOTED IN THE MYSTERY OF THE DEATH AND RESURRECTION OF JESUS CHRIST, OUR LORD AND SAVIOR. MAY HIS GRACE AND MERCY ACCOMPANY AND RENEW YOU THROUGHOUT THIS PROCESS.



FOR TRIBUNAL USE ONLY

APPROVAL OF JUDICIAL VICAR OR ADJUTANT JUDICIAL VICAR:	DATE OF ACCEPTANCE: